THE STATE
versus
TOFARIREPI NGARIFE

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 28 July 2026

Criminal Review

CHITAPI J: The accused appeared before the magistrate at Mbare Magistrate Court on 28 February 2025 of culpable homicide arising out of a road traffic accident, the offence being created by s 49 (a) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] as read with s 64 (3) of the Road Traffic Act [*Chapter 13:11*]. He was convicted as charged and sentenced to pay a fine of US $ 450 in default of payment to serve 4 months imprisonment. His conviction followed a guilty plea trial purportedly done in terms of s 271(2) (b) of the Criminal Procedure and Evidence Act, [*Chapter 9:07*].

The brief facts of the case were that on 14 September 2024. The accused was driving a Toyota Sienta motor vehicle registration AGO 0268 along Chitora road in Budiriro, Harare. He veered Off the road without keeping a proper look out and struck a pedestrian who was walking on the side of the road. The pedestrian died from injuries sustained in the accident.

When the record was placed before me on review, I noted a query that the learned magistrate did not properly conduct the guilty pleas trial as provided for in s 271 (2) (b) of the CPEA. I raise the query by the letter dated 21 June 2025 as follows

> "Can the magistrate comment on whether he was properly guided in disposing of this matter by Guilty plea trial procedure. Where is the explanation for the charge and where is the recording of the explanation. See William *Ndlovu* v *State* SC 223/91, *S* v *Mutokodza and 2 Ors HH* 262/20; *S* v *Nyamhunga* HH 508/21. Respond within 10 days of the date of the query."

The anomaly which led to the query is that in the guilty plea trial, the learned magistrate recorded the proceedings as follows:

"PP Charge put to the accused
Q How do you plead?
- I admit
PP 271(2) (b)
PP Facts put the accused ……."

The above procedure was inconsistent with requirement that a charge is not just read out to the accused but should be explained with the explanation being given being recorded down by the magistrate. The learned magistrate as evident from the record did not do so. He candidly admitted the omission as follows in response to the query.

> "May the record be placed before the Honorable Judge with the following comments
> I am in receipt of the review minute dated 2 June 2025 and I have gone through the cited cases and o agree with the Honorable Judge that the accused should plead to a charge which has been explained to him or her and the explanation should be recorded.
> I am indebted to the court for the guidelines."

The learned magistrate did not say that he or she explained the charge even without recording it. The cases cited in my query and many others which are entity accessed on line spell out the correct procedure for the magistrate to follow. I am satisfied that the learned magistrate as per the response given is sufficiently informed not to repeat the same mistake.

The accused has already satisfied the sentence; a re-trial is not an option. It is also does not serve any purpose to set aside the proceedings. Consequently, marking the proceedings as not having achieved real and substantial justice is the course that I will adopt.

In the result, I withhold certificate.

CHITAPI J…….